

1 Introduction: locating geographical indications

This book is concerned with the origins of Geographical Indications (GI) protection and the process by which they have emerged as a distinct category of subject matter within international Intellectual Property (IP) law. It sets out to locate GIs within the ‘webs of significance’ spun across the legal discourse of a century, by pursuing two interrelated questions:

- (1) Under what circumstances were signs which indicate the geographical origin of products incorporated within international IP law?
- (2) What can this usefully tell us about the present international regime governing their use and misuse?

These questions are important because the law in this area is a mess. In fact, it has been spectacularly messy for over a century. Despite the popularity of wines from Champagne, Colombian coffee, Darjeeling tea and other such regional products,¹ the nature, scope and institutional forms of protection available vary considerably across jurisdictions. Notwithstanding a century of harmonisation efforts, a consensual basis for granting rights to a particular group to use a geographical designation and the extent to which third parties should be excluded continues to prove elusive. This state of affairs is undesirable since an ever-expanding range of stakeholders – producers, consumers and policy makers – have an interest in the regulation of these signs. The debates grind on, generating abundant heat but far less light. The TRIPS Agreement² has emerged as the site where these arguments coalesce, during attempts

¹ For the purposes of this book, regional or local products are those where the region of origin has added significance in the marketplace. See A. Tregear, ‘What is a “Typical Local Food”? An Examination of Territorial Identity in Foods Based on Development Initiatives in the Agrifood And Rural Sectors’, Centre for Rural Economy, Working Paper 58 (January 2001), 1. While the usage is most commonly found in the agricultural foodstuffs and beverages sectors, it extends beyond this to include crafts, textiles and other sectors.

² Agreement on Trade-Related Aspects of Intellectual Property Rights, 15 April 1994, in the Marrakesh Agreement Establishing the World Trade Organization, Annex 1C (1994) 33 ILM 1125, 1197 (hereafter, TRIPS).

to clarify its existing provisions or reform its architecture. Although there are several points of disagreement, a central puzzle relates to the differential treatment sought for GIs by their proponents. These geographical signs appear functionally analogous to trade marks, a more familiar category of subject matter protected by IP law. Both categories signal the (commercial or geographical) origin of goods in the marketplace and sustain valuable reputations. Granting exclusive rights over such signs ensures uncluttered signalling in the marketplace, with consumers as well as legitimate producers benefiting from this. Yet despite the apparent similarities, advocates of GI protection seek enhanced international standards, which would proscribe a broader range of uses by third parties. The epistemic basis for this differential treatment rests upon the claim that a distinctive or unique link exists between a certain category of products and their regions of origin. The most influential articulation of this link is encapsulated in *terroir*, an expression associated with the French wine industry. However, the international reference point is found in Article 22.1 of TRIPS:

Geographical indications are, for the purposes of this Agreement, *indications which identify* a good as originating in the territory of a Member, or a region or locality in that territory, where a given *quality, reputation or other characteristic* of the good is *essentially attributable to its geographical origin* (emphasis added).

This link between product, producers and place therefore grounds attempts to carve out a distinct niche for GIs within the IP canon. In the following pages, the functional significance of this link is unpacked as it fluctuates over several decades. It is only by first locating the historical basis of GI protection that we can meaningfully evaluate contemporary attempts to relocate GI protection. These attempts either awkwardly straddle distinct epistemic paradigms or occasionally generate entirely new normative accounts that cannot readily be integrated within the current framework.

1. The mess: conceptual, institutional and epistemic

Having set out the central axis of enquiry, it is necessary to expand upon the initial diagnosis in order to more fully appreciate the task that lies ahead. Let us begin by making some sense of the mess we are in, disentangling its component strands along the way. The muddle is primarily conceptual and relates to the identification of appropriate subject matter. An unmistakeable symptom is the terminological diversity in this area. Several categories of signs are conventionally understood to fit within the broad heading of ‘GIs’ as a category of IP. With due apologies

for the servings of alphabet soup, the list begins chronologically with the Indication of Source (IS) explored further in Chapter 2. It then incorporates the Appellation of Origin (AO) and its inspiration, the French *Appellation d'Origine Contrôlée* (AOC) reviewed in Chapters 3 and 4. Subsequently Chapters 5 and 6 consider the EU's Protected Designation of Origin (PDO) and Protected Geographical Indication (PGI), the World Intellectual Property Organization (WIPO) attempt at establishing the Geographical Indication (GI), followed by the TRIPS definition of the GI already introduced above. This is only a limited selection of the major contenders. The most comprehensive WTO survey of national laws to date identifies twenty-three distinct national definitions applied in this area.³ It is recognised that because 'of the diverse ways in which the protection of [GIs] has evolved under national laws, there is no generally accepted terminology' in this area.⁴ This is in marked contrast to the other domains of IP. 'The protection of GIs, unlike that of patents or trade marks, is not an IP system whose variants, which are more or less similar – or at least comparable – to each other, are applied throughout the world'.⁵ The lack of a common conceptual framework leads to co-ordination difficulties,⁶ with one commentator suggesting that we are 'confronted with a tower of Babel'.⁷ According to Norma Dawson, throughout the twentieth century GIs have been 'an intellectual property right in the making surrounded by a complex debate lacking common terminology'.⁸ Opposing sides therefore tend to talk past one another during international negotiations. The judiciary has joined this concerned chorus on occasion, with Advocate General Jacobs noting that 'the terminology used in this area itself risks being a fruitful source of confusion'.⁹ Since these terms usually originate within the context of specific multilateral treaty

³ See Annex B to the WTO, 'Review under Article 24.2 of the Application of the Provisions of the Section of the TRIPS Agreement on Geographical Indications', 24 November 2003 (IP/C/W/253/Rev.1).

⁴ G. B. Dinwoodie, W. O. Hennessey and S. Perlmuter, *International Intellectual Property Law and Policy* (Lexisnexis, New Jersey 2001), 315. See also C. M. Correa, *Trade Related Aspects of Intellectual Property Rights: A Commentary on the TRIPS Agreement* (Oxford University Press 2007), 211 ('There are few areas of [IP] law where definitions are as diverse as in the area of [GIs]').

⁵ A. Jokuti, 'Where is the What if the What is in Why? A Rough Guide to the Maze of Geographical Indications' [2009] EIPR 118.

⁶ F. Gevers, 'Topical Issues in the Protection of Geographical Indications', October 1997 (WIPO/GEO/EGR/97/5), 2 (also referring to GIs as the 'sleeping beauty' of IP on this basis).

⁷ M. Ficsor, 'Challenges to the Lisbon System', 31 October 2008 (WIPO/GEO/LIS/08/4), [5].

⁸ N. Dawson, 'Locating Geographical Indications: Perspectives from English Law' (2000) 90 TMR 590.

⁹ *Schutzverband gegen Unwesen in der Wirtschaft eV v. Warsteiner Brauerei* (C-312/98) [2000] ECR I-9187, [2] (AGO).

obligations, the WTO Secretariat navigates this minefield by adopting the neutral terminology of Indications of Geographical Origin (IGOs) as a common denominator.¹⁰ The Secretariat's umbrella term is adopted for the duration of this book, where *the IGO refers to a category of sign denoting the geographical origin of the associated product and that category has previously figured within the IP discourse*, making it relevant for our purposes. It is hoped that this will avoid the artificial backward projection of the GI in TRIPS onto categories which are not functional analogues.

The preceding paragraph suggests that the only reliable functional baseline for IGOs is that they operate as signs indicating geographical origin in the marketplace. Yet this also lays the foundations for a variety of additional messages to be communicated. For instance, are they signs which indicate (1) merely a product's origin, (2) its reputation associated with a specific origin, (3) its distinctive qualities associated with origin, or (4) its unique qualities that are reliant upon origin? Once we add time and space into the mix, matters get more complicated. What if a sign fulfils one of these functions, but only in a particular jurisdiction? Should we pre-emptively reserve its ability to do so elsewhere? It is evident that this terminological diversity corresponds to divergent expectations about the communicative work these signs are supposed to do and the ensuing scope of protection. There is a general understanding of what we mean by the 'protection' of such signs,¹¹ but on what basis should we define its scope?

Geographical designations, like many other forms of identifier, also touch a wide variety of interests and sensitivities that range from our most basic territorial instincts to more sophisticated conceptions of market and cultural justice. While the misuse of geographical attributions may offend many feelings, only certain types of such misuse are sanctioned by the law.¹²

Identifying suitably qualified signs, types of undesirable misuses and proportionate legal responses has proven enduringly divisive. There is a narrow consensus around the proposition that the use of a geographical sign will be prohibited where it results in consumers being misled or confused as regards the origin or qualities of the product. But beyond this, to what extent should any geographical reference on a product

¹⁰ WTO, 'Review under Article 24.2', [6].

¹¹ J. Audier, 'Protection of Geographical Indications in France and Protection of French Geographical Indications in Other Countries', October 1997 (WIPO/GEO/EGR/97/8 Rev), 7 ('Protection is a term with several meanings and there are many reasons for it. Generally speaking, protection means "right to use" a geographical name ... Protection also means a right to prevent illegal use of geographical names').

¹² WIPO, *Report of the Second WIPO Internet Domain Name Process – The Recognition of Rights and the Use of Names in the Internet Domain System* (3 September 2001), [205].

by third parties be deemed illicit? The ambiguity leaves a number of unsettled controversies in its wake. Should only Greek producers be allowed to make Feta? Should French producers have exclusive rights to the use of Champagne, overriding the protests of Californian and Australian wine-makers? To what extent do we protect GIs from developing countries – regional specialities consisting of coffees and crafts, toys and textiles? Whose interests do we accommodate in these balancing acts? As we will see in Chapter 4, the categories of misuse under consideration can be parsed into: (1) misleading or confusing uses; (2) allusive uses which relate to other types of harm, such as third party use leading to the erosion of the distinctiveness of an IGO, or the tarnishment of its reputation; (3) misappropriation or ‘free riding’ on another’s efforts; and (4) ‘absolute’ protection, which *presumes that any use* of a geographical sign by those based outside the eponymous region ought to be prohibited. One line can be drawn between the first category (universally accepted) and the other three (which remain controversial). Another demarcates the first three (where audience perceptions matter) from the fourth (more formalistic and less context sensitive in its approach). This suggests the need for an overarching enquiry. How are we to decide these questions of scope? What are the epistemic frameworks – the background benchmarks for separating true from false claims – that operate in this area?

The tentative terminology and epistemic uncertainty also leads to an assortment of institutional arrangements at the national level. Since a number of different legal regimes encompass origin marking for disparate reasons, this adds yet another layer of complexity. WIPO notes that the variety of different legal concepts surrounding GIs ‘were developed in accordance with different national legal traditions and within a framework of specific historical and economic conditions’.¹³ Given the variety of forms of protection in this area, which institutional configurations are optimal? A long-standing obstacle to harmonisation efforts has therefore been ‘the diversity of various national concepts. [GIs] are addressed in laws concerning unfair competition, trade marks, advertising and labelling, foods and health, as well as in special regulations’.¹⁴

¹³ WIPO, ‘Document SCT/6/3 Rev. on Geographical Indications: Historical Background, Nature of Rights, Existing Systems for Protection and Obtaining Protection in Other Countries’, 2 April 2002 (SCT/8/4), 4.

¹⁴ A. Conrad, ‘The Protection of Geographical Indications in the TRIPS Agreement’ (1996) 86 TMR 11, 14. For other surveys of the legislative variety, see A. Devletian, ‘The Protection of Appellations of Origin and Indications of Source’ (1968) *Industrial Property* 107, 111–13; O’Connor & Co, *Geographical Indications and TRIPS: 10 Years Later ... Part II – Protection of Geographical Indications in 160 Countries around the World* (Report commissioned for European Commission (DG Trade) 2007).

If the expectation is for IP rights to be bureaucratically channelled through an Intellectual Property Office or Patent Office at the national level, IGOs – even those formally recognised as categories of IP – are sometimes lodged elsewhere.¹⁵ GIs are defined and regulated by the Consumer Code in France,¹⁶ registered as protected names by the Department for the Environment, Food and Rural Affairs (DEFRA) in the UK¹⁷ and have been governed by aspects of Agricultural Law in Switzerland.¹⁸ For several decades revenue laws have played a significant role in this area.¹⁹ Surveys indicate that IGO protection ‘is provided through a variety of laws and regulations, including laws against unfair competition, fair trade practices laws, marketing and labelling laws, consumer protection laws, laws for the protection of appellations or origin and national and regional registration systems for geographical indications’.²⁰ An explanation for the existence of multiple, often overlapping forms of protection is offered in Chapter 2, which recovers the origins of this heterogeneity. In response, there are periodic attempts to tidy up this profusion into analytically useful categories:

The first [category] relates to laws focusing on business practices. Typically, the issue at stake in legal proceedings regarding the use of a [GI] under such laws is not whether the GI as such is eligible for protection but, rather, whether a specific act involving the use of a GI has contravened the general standards contained in laws covering unfair competition, consumer protection, trade descriptions, food standards etc. The second category concerns protection through trade mark law ... On the one hand, protection may be provided against the registration and use of GIs as trade marks. On the other hand, protection may be provided through collective, guarantee or certification marks. In contrast to the general means of protection of the first and second

¹⁵ I. Kireeva and B. O'Connor, ‘Geographical Indications and the TRIPS Agreement: What Protection is Provided to Geographical Indications in WTO Members?’ (2010) 13 JWIP 275, 284 (‘In some EC member states such as Italy, Spain, Greece, Ireland and Finland, the competent authorities are the Ministries of Agriculture, which have a principal role [along] with the European Commission in verifying applications’).

¹⁶ Arts. L 115–1 to L 115–33 of the Code de la Consommation.

¹⁷ See www.defra.gov.uk/food-farm/food/protected-names/.

¹⁸ See Art. 63 of the Federal Law on Agriculture adopted on 29 April 1998. For the French text, see WTO, ‘Main Dedicated Intellectual Property Laws and Regulations Notified Center Art. 63.2 of the Agreement’, 7 July 2003 (IP/N/1/CHE/G/6). See also F. Brand, ‘Protection of Geographical Indications: The Experience of Switzerland’, 18 November 2003 (WIPO/GEO/DEL/03/3).

¹⁹ Legislation would often define such regional products with an eye to duties based on origin marking. For example Scotch whisky was initially defined by statute in s. 24 of the Finance Act 1933 and subsequently in s. 243(1)(b) of the Customs and Excise Act 1952. See *John Walker & Sons Limited v. Henry Ost and Co Ltd* [1970] FSR 63, 67.

²⁰ WIPO, ‘Protection of Geographical Indications: General Introduction, International Protection and Recent Developments’, June 2001 (WIPO/GEO/CIS/01/1), [28].

categories, the third category of protection concerns means specifically dedicated to the protection of GIs. Some of these means provide *sui generis* protection for GIs that relate to products with specifically defined characteristics or methods of production; other means apply without such specific definitions.²¹

It is worth mentioning that each technique selected ‘reflects a particular approach to reconciling the various interests engaged by GI protection that may suit the particular needs of a specific community, but may not deliver identical outcomes to the different legal means used in other jurisdictions’.²² To this terminological jumble, epistemic ambiguity and variety of legal instruments, we must add the relative obscurity of this area of the law. It has been referred to as ‘the untended patch of the [IP] garden’,²³ having a tangled and ‘cobweb like texture’²⁴ and an area ‘long considered to be exclusively of interest to some few wine and cheese producing countries and, besides that, to be that kind of intellectual property nobody really understood and therefore to be left to a handful of specialists’.²⁵ There is a sense that ‘the conceptual underpinnings of GIs have not been rigorously examined’.²⁶ The heterogeneity of concepts and forms coupled with scholarly neglect also precipitates a more fundamental question. GIs continue to be regarded by some as offshoots of consumer protection law, tools of agricultural policy or aspects of food quality regulation and therefore a questionable presence within IP regimes. There are some who challenge the inclusion of such subject matter within the recognised categories of IP. The question is most directly posed by Stephen Stern but is also taken up by other commentators.²⁷ It is a fair question to ask and one that this book sets

²¹ D. De Sousa, ‘Protection of Geographical Indications under the TRIPS Agreement and Related Work of the World Trade Organization (WTO)’, November 2001 (WIPO/GEO/MVD/01/2), 4–5.

²² A. Taubman, ‘The Way Ahead: Developing International Protection for Geographical Indications: Thinking Locally, Acting Globally’, November 2001 (WIPO/GEO/MVD/01/9), 10. Unsurprisingly, the institutional form adopted depends on the underlying subject matter interest. See G. R. d’Imperio, ‘Protection of the Geographical Indications in Latin America’, November 2001 (WIPO/GEO/MVD/01/5), 2 (‘Thus, whereas in some countries protection is granted ... for viticultural and agricultural products, in others the economic interest ... has led to protection being given to non-agricultural products such as mineral waters, beers, porcelains and semi-precious stones’).

²³ B. O’Connor, *The Law of Geographical Indications* (Cameron May, London 2004), 21.

²⁴ Jokuti, ‘A Rough Guide to the Maze’, 118.

²⁵ WIPO, ‘International Protection of Geographical Indications: The Present Situation and Prospects for Future Developments’, 1 September 1999 (WIPO/GEO/CPT/99/1), [1].

²⁶ K. Raustiala and S. R. Munzer, ‘The Global Struggle over Geographical Indications’ (2007) 18 *European Journal of International Law* 337, 339–40.

²⁷ S. Stern, ‘Are GIs IP’ [2007] *EIPR* 39. See also J. Belson, *Certification Marks* (Sweet and Maxwell, London 2002), 23; W. van Caenegem, ‘Registered Geographical Indications: Between Rural Policy and Intellectual Property – Part II’ (2003)

out to answer. IP rights are fundamentally exclusionary and need clear justifications because they affect 'what [people] may do, how they may speak, and how they may earn a living'.²⁸ Otherwise they remain vulnerable to allegations of protectionism and the selective favouring of certain interests. Such allegations do make frequent appearances during the international deliberations on this topic.

2. Controversies and interests

If the conceptual and institutional ambiguity provides the fuel, it is the actual or potential value of IGOs that sparks off controversies. 'The economic and political significance of [GIs] has been growing in recent years as the use of distinctive or quality signs has promoted the demand for products of a specific geographical origin'.²⁹ While value is usually measured in economic terms within the context of international trade negotiations, their heritage value or value as vectors of rural development is gaining in prominence. Cumulatively, these raise the stakes and the 'debate about [GIs] has proven to be intractable, ill-defined, and at times passionate'.³⁰ The sensitivities surrounding the current regime in TRIPS stem from the growing 'recognition of the commercial significance of [GIs], in particular in respect of agricultural and food products, for exporting countries that may rely upon the added value that [they] may bestow'.³¹ For that reason, IGO protection is situated within the framework of international trade strategies and constraints.³² To take

6 JWIP 861, 874; E. Meltzer, 'Geographical Indications: Point of View of Governments', 30 June 2003 (WIPO/GEO/SFO/03/3), [12]; J. Hughes, 'Champagne, Feta, and Bourbon – The Spirited Debate about Geographical Indications' (2006) 58 *Hastings Law Journal* 299, 331–4. H. Ilbert and M. Petit, 'Are Geographical Indications a Valid Property Right? Global Trends and Challenges' (2009) 27 *Development Policy Review* 503. For a response to Stern, see D. Rangnekar, 'The Intellectual Properties of Geography' [2009] EIPR 537.

²⁸ J. Waldron, 'From Authors to Copiers: Individual Rights and Social Values in Intellectual Property' (1993) 68 *Chicago–Kent Law Review* 841, 887.

²⁹ Communication from New Zealand, 'Geographical Indications and the Art. 24.2 Review', 18 September 2000 (IP/C/W/205), [3].

³⁰ Taubman, 'The Way Ahead', 2; See also L. Bendekgey and C. Mead, 'International Protection of Appellations of Origin and Other Geographical Indications' (1992) 82 TMR 765; L. Beresford, 'Trade Marks and Geographical Indications 101: What Trade Mark Owners Should Know' (2008) 1 *Landslide* 19 ('One of the most controversial subjects facing the IP world today is the treatment of [GIs]').

³¹ De Sousa, 'Protection of Geographical Indications under the TRIPS Agreement', 2.

³² W. van Caenegem, 'Registered GIs: Intellectual Property, Agricultural Policy and International Trade' [2004] EIPR 170; A. F. R. de Almeida, 'The TRIPS Agreement, the Bilateral Agreements Concerning Geographical Indications and the Philosophy of the WTO' [2005] EIPR 150; T. Josling, 'The War on Terroir: Geographical Indications as a Transatlantic Trade Conflict' (2006) 57 *Journal of Agricultural Economics* 337.

one example, the major part of the annual production of Darjeeling tea is exported,³³ which underlines the need for an international regime regulating the misuse of such designations. An important factor here is the territorial nature of IP rights. IGOs may be recognised within the legal system of their 'home' country,³⁴ but recognition and protection is confined to that national jurisdiction.³⁵ Bilateral treaties and international conventions are adopted to work around this limitation, by establishing minimum standards of protection or reserving the use of certain terms identified in lists exchanged between signatories. The awareness of this value and the desire for greater international protection has drawn a number of new participants into these debates, beyond a core group of European countries with experience in this area. As we will see in Chapter 6, over one hundred WTO Members now support proposals to increase the international scope of protection and institutional recognition for GIs. 'Behind these negotiations is an increasing perception that localisation of the signified source of products is associated with increased value and reach into global markets. In effect, export-focussed producers learn to act globally by thinking locally. This has increased the sense of what is at stake in the identification and protection of [GIs]'.³⁶ Meanwhile the additional values associated with GI protection are being explored in earnest. 'The importance of GIs in Asia, however, goes beyond trade and commerce. It has to be understood in the wider context of protecting and preserving intellectual property pertaining to traditional cultures, assets, and production methods in some of the world's oldest human settlements. GIs ... can serve key development objectives'.³⁷ The entry of these new players, many of whom are from the Global South, has resulted in the absorption of new interests, arguments and dynamics into the existing stock.³⁸ This opens up the space to fundamentally reassess the basis as well as techniques for GI protection, as newer entrants will need

³³ N. K. Das, 'Protection of Darjeeling Tea', 3 July 2003 (WIPO/GEO/SFO/03/8), [26].

³⁴ For the duration of this book, 'home country' is shorthand for the state or legal jurisdiction within which the GI's region of origin is located.

³⁵ A. Kamperman Sanders, 'Incentives for Protection of Cultural Expression: Art, Trade and Geographical Indications' (2010) 13 JWIP 81, 84.

³⁶ Taubman, 'The Way Ahead', 7.

³⁷ S. Wagle, 'Protection of Geographical Indications and Human Development: Economic and Social Benefits to Developing Countries', November 2003 (WIPO/GEO/DEL/03/7), 3.

³⁸ Ilbert and Petit, 'Are Geographical Indications a Valid Property Right?', 516; S. Escudero, 'International Protection of Geographical Indications and Developing Countries' Working Paper No. 10, South Centre (July 2001); D. Rangnekar, 'Protecting Indications of Geographical Origin in Asia: Legal and Practical Issues to Resolve', in R. Meléndez-Ortiz and P. Roffe (eds.), *Intellectual Property and Sustainable Development: Development Agendas in a Changing World* (Edward Elgar, Cheltenham 2009), 273.

to adapt or even fundamentally reinvent European *sui generis* GI models.³⁹ For instance, they may have a greater interest in crafts and textiles, alongside agricultural products and alcoholic beverages, or the nature of state involvement in the process of recognition and protection may differ.

If one side of the story celebrates the growing interest in GIs within the TRIPS membership, it is matched by a counter-narrative of concern, if not downright hostility, directed towards *sui generis* GI protection systems. The opposition stems from the apparent prioritising of GI producers' interests over others within these systems. In particular, the interests of trade mark registrants or those who use geographical terms in a generic manner appear to be threatened. Under certain conditions, geographical signs can be registered as individually owned trade marks, which could result in conflicting claims over the use of the same sign in a given jurisdiction.⁴⁰ If subsequently recognised GIs are allowed to trump prior trade mark rights, this endangers established proprietary interests.⁴¹ Opponents also wish to preserve the freedom to use a geographical term in a generic manner, to designate a type of product irrespective of its place of origin. There is broad agreement that cheddar is the generic expression for a kind of cheese, while there is vigorous international disagreement about the status of Feta or Parmesan.⁴² Much turns on the legal status of these expressions, as illustrated in a statement by the Director of the Grocery Manufacturer's Association (GMA) of America before the US House of Representatives, during a series of formal hearings on international GI protection.

[Even] the loss of one name (e.g., parmesan) could represent hundreds of millions of dollars to GMA member companies. Companies would be forced to repackage products, and, more importantly, re-educate consumers through re-branding campaigns. GMA is concerned that the very companies that created the value in many goods may be forced [to] renounce their claim on these

³⁹ M-C. Wang, 'The Asian Consciousness and Interests in Geographical Indications' (2006) 96 TMR 906; D. Marie-Vivien, 'The Role of the State in the Protection of Geographical Indications: From Disengagement in France/Europe to Significant Involvement in India' (2010) 13 JWIP 121.

⁴⁰ D. Gangjee, 'Quibbling Siblings: Conflicts between Trade Marks and Geographical Indications' (2007) 82 *Chicago-Kent Law Review* 1253.

⁴¹ J. Phillips and I. Simon, 'Geographical Indications: The Biggest Threat to Trade Marks?' *Marques Newsletter* (Spring 2004), 2; H. Harte-Bavendamm, 'Geographical Indications and Trade Marks: Harmony or Conflict?', September 1999 (WIPO/GEO/CPT/99/6); WIPO, 'Possible Solutions for Conflicts between Trade Marks and Geographical Indications and for Conflicts between Homonymous Geographical Indications', 8 June 2000 (SCT/5/3).

⁴² See Chapter 5, Section 6 for further details.

products. The products in question are no longer source identifiers since they have become known as a type or style of product. . .⁴³

These threats to established trade marks and generic usage were identified during the Uruguay Round leading up to the formation of the TRIPS GI provisions.⁴⁴ As Chapter 2 documents, they were initially flagged up in the late nineteenth century and remain very much part of the conversation today. In many cases, these concerns are well founded and they cannot be ignored. The following pages will reveal, that there are several problematic claims and assumptions found within *sui generis* GI protection systems. However, the response by those opposing *sui generis* GI protection is not without its own biases and oversimplifications.

The response has two broad components. Taking into account the conceptual ambiguity surrounding GIs, opponents argue that these geographical signs can be better accommodated within the registered trade mark system, primarily as certification or collective marks. Since this more 'rational' and widely accepted model is available, they are often dismissive of *sui generis* GI protection, tending towards a caricature of protectionism in their critiques. The US has taken up the vanguard in recommending that since GIs and trade marks share a functional equivalence, the former category should be merged within the latter. Thus GIs 'can be viewed as a subset of trade marks. [They] serve the same functions as trade marks, because like trade marks they are: 1) source-identifiers, 2) guarantees of quality, and 3) valuable business interests'.⁴⁵ The US argues that 'both aim to prevent consumers from being misled or confused as to whether the goods they buy possess the anticipated qualities and characteristics'.⁴⁶ This functional similarity has been appreciated elsewhere as well. In *Parma v. Asda*, the House of Lords, as it then was, stated that the purpose of GI protection 'is twofold. It is intended both to protect producers of the products from unfair competition and to protect consumers from being misled by the application to products of false or misleading descriptions'.⁴⁷

⁴³ Prepared statement of Sarah Thorn, Director of International Trade, Grocery Manufacturers of America in Hearings before the Committee on Agriculture, House of Representatives on the Status of the World Trade Organization Negotiations on Agriculture, (108–5) 108th Congress (2003) 273, 276.

⁴⁴ See, e.g., GATT, 'Minutes of Negotiating Group of 12–14 July 1989', 12 September 1989 (MTN.GNG/NG11/14), [56]–[57], [61], [62].

⁴⁵ See USPTO, 'Geographical Indication Protection in the United States', available at www.uspto.gov/web/offices/dcom/olia/globalip/pdf/gi_system.pdf.

⁴⁶ EC – Protection of Trademarks and Geographical Indications for Agricultural Products and Foodstuffs, First Submission of the United States, 23 April 2004 (WT/DS174 and 290), [132].

⁴⁷ *Consorzio del Prosciutto di Parma v. Asda Stores Limited and Others* [2001] UKHL 7; [2002] FSR 3, [58] (Lord Scott of Foscote).

Lord Scott noted that there is ‘an obvious similarity of purpose shared by trade marks and [European PDOs]’.⁴⁸ Similarly, the Swiss Federal Court of Justice has observed that the ‘function both of trade mark protection and of protection for appellations of origin is to ensure the distinguishing function of the designation and to prevent mistaken attributions – whether regarding the manufacturer or the place of origin’.⁴⁹ More recently, the ECJ has noted that the EU’s IGO registration system ‘meets both the requirements of consumer protection ... and the need to maintain fair competition between producers’.⁵⁰

As *sui generis* GI protection has proved controversial and GIs share an apparent functional equivalence with trade marks, international lobbying efforts have intensified to absorb these collectively used signs within the trade mark regime, via certification or collective trade marks.⁵¹ The US actively subsumes GI protection under trade mark law within the framework of a series of bilateral trade agreements.⁵² Alongside this proposed amalgamation, opponents also contend that a *sui generis* GI regime committed to strong standards of protection can largely be explained on the basis of protectionism. If trade mark systems can do the job, what else explains the existence of independent regimes favouring GI collectives? Therefore some commentators have concluded that GIs are a protectionist device for European regional producer collectives and agricultural models.⁵³ Seen as an act of resistance by

⁴⁸ Ibid., [100].

⁴⁹ *Anheuser-Busch Inc v. Budějovický Budvar Narodni Podnik* [2001] ETMR 7, [82] (Swiss FC).

⁵⁰ *Alberto Severi v. Regione Emilia-Romagna* (C-446/07) [2009] ECR I-8041; [2009] ETMR 64, [53] (ECJ).

⁵¹ See, e.g., the USPTO position, available at www.uspto.gov/ip/global/geographical/index.jsp; Statement of Jon W. Dudas, Deputy Director, US Patent and Trade Mark Office in Hearings before the Committee on Agriculture, House of Representatives on the Status of the World Trade Organization Negotiations on Agriculture, (108–5) 108th Congress (2003) 349; Communication from the US, ‘Suggested Method for Domestic Recognition of Geographical Indications for WTO Members’, 11 March 1999 (IP/C/W/134); WIPO, ‘Report to the 7th Session of the SCT’, 27 May 2002 (SCT/7/4), [33].

⁵² A list of US FTAs is available at www.ustr.gov/trade-agreements/free-trade-agreements.

⁵³ See e.g., J. Armistead, ‘Whose Cheese Is It Anyway? Correctly Slicing the European Regulation Concerning Protections for Geographic Indications’ (2000) 10 *Transnational Law & Contemporary Problems* 303, 318; D. B. Shalov, ‘Will the European Union Prove to be Lactose Intolerant?’ (2004) 11 *Cardozo Journal of International and Comparative Law* 1099, fn 8; L. B. Nieuwveld, ‘Is This Really about What We Call Our Food or Something Else? The WTO Food Name Case over the Protection of Geographical Indications’ (2007) 41 *International Lawyer* 891; T. Broude, ‘Taking “Trade and Culture” Seriously: Geographical Indications and Cultural Protection in WTO Law’ (2005) 26 *University of Pennsylvania Journal of International Economic Law* 623, 655 (‘More broadly, like other forms of agricultural protectionism, GIs may be construed as necessary for the preservation of the farm culture of production in general’).

the local against the global, 'the desire to maintain what is local is considered by many to be ... perhaps protectionist'.⁵⁴ By denying the use of feta as a generic term, those who claim Feta as a protected term are insulating themselves against generic competitors using the same designation. It must be recalled that GI protection does not prevent others from manufacturing a white cheese in brine that tastes broadly similar. They simply cannot describe it as Feta, but this could impede the signalling of substitutability. GIs are portrayed as the objects of realpolitik gambits with favourable trade outcomes, rather than nuances of intellectual property doctrine, informing negotiating positions.⁵⁵ 'Although *terroir* and a claim for a unique communications function for [GIs] is the European Union's public rhetoric ... [the] European Commission has a simpler goal: control of geographic words for their evocative value in the marketplace. The monopoly rents available from exclusive control of this evocative value drive the EU position in the debates.'⁵⁶ There is some evidence to support these misgivings, such as the greater emphasis being placed on GIs in response to declining market shares for European wines as they are outperformed by competitors from the Americas, Australia and South Africa.⁵⁷ Yet collapsing GI regimes into a functional equivalent (or even a poor cousin) of trade mark law, whilst restricting the explanations for the existence of *sui generis* systems to mere protectionism is an unsustainable generalisation.

The critique of *sui generis* GI protection in turn provokes a counter-response, which is based on the understanding that the overlap between GIs and trade marks is only partial. This challenges the premise of the registered trade mark system being a complete functional substitute. To a certain extent, GI protection is attuned to protecting consumer interests and protecting legitimate producers against unfair competitive practices in the marketplace. However, this is only the starting point.

⁵⁴ M. Echols, *Geographical Indications for Food Products: International Legal and Regulatory Perspectives* (Kluwer, Alphen aan den Rijn 2008), 3.

⁵⁵ S. Stern, 'Geographical Indications and Trade Marks: Conflicts and Possible Resolutions', 13 June 2003 (WIPO/GEO/SFO/03/13), [4].

⁵⁶ Hughes, 'Champagne, Feta, and Bourbon', 305.

⁵⁷ The crisis is acknowledged in Recital 2 of Council Regulation (EC) No 479/2008 of 29 April 2008 on the Common Organisation of the Market in Wine [2008] OJ L148/1 ('Wine consumption in the Community has been steadily diminishing and the volume of wine exported from the Community since 1996 has been increasing at a much slower rate than the respective imports. This has led to a deterioration of the balance between supply and demand which in turn puts producers' prices and incomes under pressure'). See also M. Torsen, 'Apples and Oranges (and Wine): Why the International Conversation Regarding Geographical Indications is at a Standstill' (2005) 87 *Journal of the Patent and Trade Mark Office Society* 31, 40–5.

GIs (usually those towards the AO end of the spectrum) differ in that they implicate a collective interest as opposed to a private commercial interest; they signal the associated product's link to a specific geographical origin and the degree of 'quasi-public' or state involvement in their recognition is greater.⁵⁸ These features of form and function facilitate a range of distinct policy agendas.

There are multiple objectives behind the protection of GIs: first, protection of consumers against fraud; second, protection of the producer of the good; third, territorial, local, regional and rural development; and, fourth, conservation of the biological resources, biodiversity and cultural diversity.⁵⁹

Chapter 6 considers the extent to which GIs regimes are designed differently, to deliver on distinct goals and priorities. In alluding to this difference, the legal literature resorts to the language of 'ideological schisms',⁶⁰ 'fundamental, philosophical conflict[s]',⁶¹ the existence of 'very divergent system of laws and bodies of belief'⁶² and 'profound cultural differences'.⁶³ Yet the differences have never been satisfactorily worked out. A genealogy of today's GI, as a distinct conceptual category, has never been attempted.

3. Contribution and organisation

How has the GI come to mean what it does and function in the way that it does? In retracing the construction of this distinct category of subject matter within international IP law, this book seeks to bring the current controversies within the TRIPS Agreement into focus. It is impossible to make sense of the TRIPS Agreement without appreciating its inheritance. Given the conceptual and terminological ambiguity, the mapping metaphor was hard to resist in a work on geographical signs.

⁵⁸ See respectively, *Budějovický Budvar Narodni Podnik v. Rudolf Ammersin GmbH* (C-478/07) [2009] ECR I-7721; [2009] ETMR 65, [82] (AG Ruiz-Jarabo Colomer); M. Agdomar, 'Removing the Greek from Feta and Adding Korbel to Champagne: The Paradox of Geographical Indications in International Law' (2008) 18 *Fordham IP Media and Entertainment Law Journal* 541, 577; OECD, Appellations of Origin and Geographical Indications in OECD Member Countries: Economic and Legal Implications (COM/AGR/APM/TD/WP(2000)15/FINAL), 10.

⁵⁹ Marie-Vivien, 'The Role of the State', 121.

⁶⁰ Torsen, 'Apples and Oranges (and Wine)', 32.

⁶¹ INTA Resolution, Protection of Geographical Indications and Trademarks, 24 September 1997.

⁶² L. A. Lindquist, 'Champagne or Champagne? An Examination of US Failure to Comply with the Geographical Provision of the TRIPS Agreement' (1999) 27 *Georgia Journal of International and Comparative Law* 309, 312.

⁶³ Ilbert and Petit, 'Are Geographical Indications a Valid Property Right?', 503.

However, the accompanying baggage proved too burdensome.⁶⁴ It was abandoned in favour of an analysis of relational legal categories such as the IS, AO and GI as Weberian ideal types, i.e. conceptual and not normative ideals. The relativistic conceptual analysis is aided by an attempted genealogy, or perhaps geology, of GIs. There is an obsession with TRIPS in contemporary scholarship, as if it were a self-contained code, but it is only the tip of the iceberg. Apart from exposing the contingencies of this multilateral agreement and recovering the transitions between the categories leading up to it, this approach also reveals the existence of at least two intersecting epistemic frameworks in this area. Put simply, do we protect signs on the basis of ensuring their communicative coherence (communicative logic) or do we universally reserve the use of signs for a certain group because we value the underlying product associated with the sign for its link to a specific place (*terroir* logic)? The two logics overlap, as communicative logic at the national level – when the IGO is recognised in the home jurisdiction – often shades into *terroir* logic at the international. For this reason, international protection was chosen as the appropriate level of analysis, since the interaction between divergent national approaches generates epistemic churn. The analysis concludes by suggesting that alongside a careful re-evaluation of the subjects of the law (consumers and producers), we may need to reconsider the manner in which its objects (signs and regional products) are constituted. This historical approach was also adopted to showcase the limitations of the thin version of neoclassical law and economics that otherwise occupies the theoretical foreground. It is descriptively inaccurate or simply silent on several doctrinal aspects of international GI protection, whereas its normative prescriptions presume a considerable overlap with the goals of trade mark protection. There is far more to GIs than this account acknowledges – law's constitutive influence and legitimating functions, the choice between prioritising production or consumption as the privileged site for definitional purposes, the opposing forces of homogenisation and distinction in a globalising world, attributing authorship to nature, a defence of place, the liberal individualism underpinning much of modern IP law juxtaposed against the collective or associational ideals associated with AOs, the evolving relationship between market and state, and even notions of authenticity in the face of mimesis.

⁶⁴ Maps tend to simplify and distort. They also suggest neat boundaries and disciplined, exclusive categories, while the research here suggests that continuity and overlaps are far more prevalent in this area.

The advantage of the historical approach adopted here is that it casts new light on familiar questions, enabling us to reformulate them more meaningfully in the process. It also opens up a menu of interpretative options in some situations, while revealing the basis for existing constraints in others. The archival research directly addresses the following questions:

- (1) Why is there such an abundance of terminology as well as overlapping regimes of protection in this area?
- (2) How did the notion of a link between product and place arise (and to what extent does it recognise people)?
- (3) Why does the European GI registration system have two distinct definitions but only one level of protection?
- (4) Why does the TRIPS definition refer to qualities, characteristics or reputation as three alternative means to link product to place?
- (5) Is there an explanation for the two distinct levels of protection in Articles 22 and 23 of TRIPS?
- (6) How should we determine generic status?
- (7) More generally, to what extent is GI protection distinct from the goals of trade mark law?

Since GIs have been insufficiently unpacked to date, this book sets out to provide a framework for thinking about this area. It tends towards theoretical explanations rather than theoretical justifications, to the extent that such delineations are possible. It is ambitious of necessity, seeking out the (many) gaps in explanations and awkward silences in the literature. Much that is interesting lies in the detail. A related purpose of this book is bibliographical. It is time we moved beyond the endless descriptive regurgitation of international treaties that has become a permanent fixture of the legal scholarship in this area, when there are far more interesting avenues of research to be pursued.

The organisation follows a broadly historical trajectory and Part I is concerned with origins. Any response to the question of whether GIs are a form of IP must begin by addressing the puzzle of the inclusion of the IS within the Paris Convention of 1883. What was a sign which merely indicates geographical origin doing within an industrial property convention? Where was the valuable intangible that we associate with IP protection? Revisiting the history of the IS in both the Paris Convention and the Madrid Agreement is instructive because (1) it accounts for the swarm of disparate institutional mechanisms regulating origin marking; (2) it reveals a collectively generated reputation to be the valuable intangible that is the object of the industrial property right; (3) while identifying the conceptual and pragmatic reasons for treating these signs

as a category distinct from trade marks. Of particular interest to IP scholars will be the exploration of alternative possibilities, unfair competition prevention and collective mark protection, considered within the Paris Convention. The Madrid Agreement is also of interest since it marks the transition from the IS to the AO, officially incorporating *terroir* logic for the first time.

Having introduced the notion of a special link between certain types of products and their regions of origin, Chapter 3 explores wine as the paradigmatic subject matter for IGO protection, which sets the initial benchmarks and boundaries for the subject matter template. *Terroir* is a crucial ingredient in the processes of legitimisation whereby IGOs are treated as a discrete category of protected signs. Its origins and influences are unpacked in some detail. Given the specific contingencies of the French national experience, the chapter concludes by asking whether the story of wine should become the story for all GIs. The Lisbon Agreement is the subject of Chapter 4. It documents attempts to expand the subject matter bubble beyond products of the vine to incorporate agricultural products and even crafts. In the process, the link between product and place is reconfigured to recognise the contribution of culture, or human factors, alongside nature. Yet compromises that affect the coherence of certain claims are made in the process of establishing a more abstract definition. The chapter also looks closely at the workings of this Agreement and its interpretation by various national courts. Finally, it disentangles the various categories of purported misuses of geographical signs by third parties, underlining the exceptional nature of 'absolute' protection. This tier cannot be justified according to principles conventionally found in unfair competition doctrine and based upon communicative logic.

In Part II of this book, the focus shifts to the present, which perches precariously upon the past. The TRIPS Agreement contains the current framework for the international protection of GIs and Chapter 5 tries to make sense of its provisions. It provides an account of the shape and form of contemporary rules, identifying and explaining the significance of the compromises which have been papered over. TRIPS reflects the equivocation between an unfair competition derived communicative paradigm and the *terroir* paradigm. Following this, it considers the extent to which prescriptive attempts to relocate or reinvent the basis for GI protection can build upon historic foundations, informed by unfair competition logic and dependent upon the meaning of the sign. The present and future rest on the past, which remains poorly understood. By establishing continuities with Part I, Chapter 5 identifies and unpacks the unfinished business that distorts the TRIPS architecture. The

analysis is rounded off in Chapter 6, with a review of contemporary debates before the TRIPS Council and some speculation about their epistemic significance. The newer arguments in support of the extension of Article 23 or the establishment of a multilateral register have the potential to recognise regional products as an additional object of GI protection, alongside the sign. Chapter 7 concludes by selectively re-emphasising the insights gleaned. Finally, some notes on housekeeping. All translations are the author's unless otherwise indicated. Internal citations are omitted in quotations. Spellings have been standardised for ease of perusal (e.g., 'trademark' being replaced by 'trade mark'). All internet references are valid as of 31 May 2011.